

complaint

Mr and Mrs F complain about the way Liverpool Victoria Insurance Company Limited (LV) handled a claim they made on their home insurance policy.

background

After a period of bad weather, Mr and Mrs F noticed damage to their roof. A single tile had slipped out of position at the front of the house. And mortar between some of the tiles was broken. They made a claim to LV.

LV sent a contractor to inspect the roof. They said the storm had dislodged the single tile, but it hadn't caused the problem with the mortar. Mr and Mrs F's son replaced the single tile shortly after and, bearing in mind they would have to pay an excess, Mr and Mrs F decided not to claim for the cost of replacing the single tile. They felt the mortar damage should be covered and complained to LV.

In response LV accepted there was a storm at the time of the damage. They thought the storm was the cause of the slipped tile, but the mortar damage was a result of wear and tear. Because of that the claim was declined. Mr and Mrs F referred their complaint to this service for an independent review.

Our investigator considered the complaint and concluded the roof damage was more consistent with wear and tear than storm damage. As the policy doesn't cover wear and tear, she thought LV had acted fairly by declining the claim.

Mr F disagreed. He said other areas of the roof were as old as the damaged area and the tiles there were still secure. He thought it more likely the storm had caused the mortar to break because high winds had caused the tiles to rattle and lift.

As Mr and Mrs F didn't agree it's been passed to me to review.

my findings

I've considered all the available evidence and arguments to decide what's fair and reasonable in the circumstances of this complaint. Having done so, I won't be asking LV to do anything more. I'll explain why.

The policy covers damage to the building as a result of storm. When this service looks at a complaint about a storm claim, there's three main points we usually take into account:

1. do we agree that storm conditions occurred on or around the date the damage is said to have happened?
2. is the damage claimed for consistent with damage a storm typically causes?
3. were the storm conditions the main cause of the damage?

It's only if we can answer 'Yes' to all three questions that we say the insurer is liable to pay the claim. But in this case the answer isn't yes to all three, so I'm not asking LV to pay the claim.

The answer to the first question is yes. There's been no dispute that there were strong winds the day before the damage was discovered. Weather records show wind speeds of over 60mph, which I consider are storm strength.

For the dislodged tile, the answer to the second and third questions is yes. LV accepted the single tile was dislodged due to the storm and the cost of replacing it would have been covered had it exceeded the policy excess. Mr and Mrs F chose not to continue with their claim for the tile because of the policy excess. So, I'll only consider the claim for the remainder of the roof damage.

For the mortar, I'm not satisfied the answer to the second and third questions is yes. The damage is to the mortar between a number of roof tiles. It's dislodged, broken or crumbling in various places. The purpose of mortar on the roof is to resist the impact of strong wind and keep tiles secured in place. So, it's rare for mortar to be damaged by a storm.

Typical damage caused by strong winds is where the impact of the wind has lifted or moved more exposed parts of the roof, such as ridge or edge tiles and chimney pots. Here the photos I've seen show the damaged mortar is between tiles toward the centre of the roof, so it's not in a position particularly vulnerable to strong wind.

The tiles themselves don't appear to have moved out of position but some of the mortar has. Without any clear sign of the surrounding tiles moving, the mortar damage appears more likely to be the result of gradual deterioration than the storm.

Mr F has suggested the wind may have rattled or lifted the tiles. If that had happened, it's possible the vibration or force of the wind under the tiles may have been the cause of the mortar coming out of position. Whilst I don't disagree that's a possibility, I've seen no evidence from Mr F to support that point of view. And as the tiles in the area of mortar damage don't appear out of position, I'm not satisfied this is likely to be what happened.

LV thinks the mortar damage is more akin to wear and tear than storm damage and I agree. Based on what I've seen, the mortar is more likely to have degraded over time and hasn't been damaged by the storm winds.

Mr and Mrs F have also taken out 'accidental damage' cover for their buildings. For that cover to apply, the damage must be caused suddenly. Based on what I've said above, I don't think that was the case. So, I don't think this part of the policy can provide cover for the roof damage either.

my final decision

For the reasons above, I don't uphold this complaint.

Under the rules of the Financial Ombudsman Service, I'm required to ask Mr and Mrs F to accept or reject my decision before 13 December 2019.

Kevin Parmenter
ombudsman